

TYLER v. PIPER

22CV45959

PLAINTIFF'S MOTION TO APPOINT GUARDIAN AD LITEM

This is a wrongful eviction and conversion action involving a residential tenancy. Before the Court this day is a motion by plaintiff to have a guardian ad litem (hereinafter "GAL") appointed to assist her with the continued prosecution of this action.

Pursuant to CCP §372, a party lacking the legal capacity to make decisions "shall appear" through a GAL in any case in which the court finds it expedient to do so. While the process for appointing a GAL is often considered routine (see CRC 3.114(a)(1)), requiring little exercise of discretion, a GAL may be appointed for an adult lacking the legal capacity to make decisions only if (i) he or she consents to the appointment or (ii) upon notice and hearing. (See *Alex R. v. Superior Court* (2016) 248 Cal.App.4th 1, 8-12; *McClintock v. West* (2013) 219 Cal.App.4th 540, 549; *In re Jessica G.* (2001) 93 Cal.App.4th 1180, 1187-1188.)

Here, all of the required due process protections have been satisfied:

1. Plaintiff was personally served with a copy of the pending motion;
2. Plaintiff gave her consent to the proposed GAL to act as her attorney-in-fact pursuant to a springing durable power of attorney (see Gordon Decl Exhibit 1 Introduction);
3. The "spring" indicated in the POA has been triggered (see Gordon Decl Exhibit 1 Para 2.1 and Exhibits 2 and 3);
4. The medical statements provided with the application indicate that plaintiff is suffering end stage dementia and in no position to make informed, let alone helpful, decisions in the matter of her civil action; and
5. The proposed GAL is not a party to the action and has no direct adverse interests to plaintiff (see Calaveras Local Rule 7.2.1).

Although the motion does not appear to have been served on the defendants, there is no clear statute or rule requiring this. (See, e.g., *Alex R, supra* [notice to others only required after appointment made]; *Estate of Lucy* (1975) 54 Cal.App.3d 172, 184 [notice to others of GAL application not required].)

Based on the foregoing, plaintiff's motion is GRANTED. The Clerk shall provide notice of this Ruling to the parties forthwith. The Court will sign the Proposed Order submitted by plaintiff.